

FTMO ACCOUNT AGREEMENT

This FTMO Account Agreement (the "**Agreement**") is concluded by and between:

1.	FTMO Trading Global s.r.o. , a company established and existing under the laws of the Czech Republic, with its registered office Purkyňova 2121/3, Nové Město, 110 00 Prague 1, Czech Republic, Identification No.: 094 18 415	
2.	FTMO Trader	
	Name (natural person or legal entity)	Viktor Baranov
	Legal entity represented by (if applicable)	
	Address	STREET ZELENA, BUILD 53, 00000 PECHERA, Ukraine
	Country	UA
	Email	vitya.ak22071990@gmail.com
	Phone Number	+380683861764

This Agreement consists of the following documents, which form an integral part of this Agreement and which, together, form the full agreement between the parties:

- Commercial Terms
- FTMO Account Terms and Conditions

Commercial Terms

Order Number	23602374
Product	FTMO Challenge 2-Step with a value of EUR 89
Date of the Agreement	2026-05-07

This Agreement has been concluded by both parties electronically.

FTMO ACCOUNT TERMS AND CONDITIONS

LAST UPDATED ON 23 MARCH 2026

We are FTMO Trading Global s.r.o., a company established and existing under the laws of the Czech Republic, with its registered office at Purkyňova 2121/3, Nové Město, 110 00 Prague 1, Czech Republic, Identification No.: 094 18 415 ("**we**").

You should read this document carefully. These FTMO Account Terms and Conditions (the "**Terms**") govern the FTMO Account program (the "**Program**") whereby you (i) gain access to the FTMO Account as well as analytical instruments, educational materials and other services (the "**Services**") which we will enable you to access through the website ftmo.com (the "**Website**") and (ii) may receive a reward (the "**Reward**") for the data you generate in your FTMO Account. The basis on which you may be entitled to a Reward is set out in Clause 6 (*Reward*). The FTMO Account is an account for simulated trading. The activity you engage in when you submit simulated trades in your FTMO Account is not trading in real financial instruments.

You may apply for the Program once we notify you that you have successfully passed the Evaluation Process. Upon our acceptance of your application a contract between you and us is concluded (each an "**Agreement**" and together the "**Agreements**", also referred to as the 'Account Agreement' in marketing materials and on the Website). These Terms constitute part of each Agreement. Your agreement to these Terms is evidenced by you ticking the statement that you have read and agree with the FTMO Account Terms and Conditions (FTMO Account Agreement) on the Website. If you enter in an Agreement on behalf of a legal entity, you represent that you have the authority to bind that legal entity to the Agreement and, in such event, "you" and "your" will refer and apply to that company or other legal entity.

Definition of terms and abbreviations used in these Terms can be found in Clause 21 (*Definitions and interpretation*).

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1. Eligible applicants

1.1 You may apply for an FTMO Account after we notify you that you have successfully passed the 'Evaluation Process', the separate simulated account service provided to you by FTMO Evaluation pursuant to the FTMO General Terms and Conditions (the "**Evaluation Process**"), subject to also meeting the other requirements set out in this Clause 1 (*Eligible applicants*).

1.2 You are only eligible to participate in the Program if:

1.2.1 you are a natural person at least eighteen (18) years of age and not subject to restrictions based on your nationality or residency, as determined by the specific rules of each Restricted Jurisdiction and further detailed [here](#) on the Website; or

1.2.2 you are a legal entity and are not established or incorporated and do not have a registered office or place of business in a Restricted Jurisdiction and excluding company trusts established in any jurisdiction, provided that the beneficial owner is eligible to participate in the Program in accordance with Clause 1.2.1 in their individual capacity as well,

and you are not subject to relevant international sanctions, in particular you are not included on sanctions lists of the European Union, the Office of Foreign Assets Control, the United Nations or the Czech Republic, you do not have a criminal record related to financial crime or terrorism, and you meet the requirements of our "know your customer" or "know your business" providers or similar identification procedures summarised [here](#).

1.3 If you provide a business identification number, tax registration number or similar information, or if you state that you are a legal entity, you will not be considered a Consumer for the purposes of these Terms and when using the Services for the entire duration of the Agreement.

1.4 You may only participate in the Program and access and use the Services in accordance with applicable law and these Terms. You acknowledge that your participation in the Program and use of the Services may be restricted or prohibited by law in some countries.

1.5 If you do not meet the eligibility criteria stated in this Clause 1 (*Eligible applicants*) the Agreement is not concluded.

1.6 During the application process, you must fill in all required information about yourself and provide a scan of your identification documents or other information as necessary to assist us to verify your identity and domicile. The information must correspond to the information provided by you to us or to another member of the FTMO Group previously. All data which you provide to us must be complete, true, accurate, not misleading and up to date. We are under

no duty to verify the data you provide to us. You must immediately notify us of any change in such data or update it in your user interface on the Website (the "**User Area**").

- 1.7 Using our reasonable discretion, we may refuse any application for an FTMO Account due to, among other things, compliance with applicable law.

2. Program is not a regulated financial service

- 2.1 The Program is not subject to laws regulating the financial sector in the countries where we provide the Services. We are not regulated by the Czech National Bank or a similar authority overseeing the financial sector in other countries. As a result, you will not receive regulatory protection associated with the financial sector with respect to the Program.
- 2.2 The Program does not constitute financial, investment, legal or tax advice or a recommendation to buy, sell or hold any financial product or virtual or simulated asset or to engage in a particular investment strategy.
- 2.3 We do not give any guidance, instructions, limitations or information about how or in which manner you should perform simulated trades in the Program or otherwise with the exception of Forbidden Trading Practices and Risk Management Rules (see Clause 5 (*Rules of Simulated Trading*)). Similarly, we do not accept any such guidance or instructions from you provided, however, that we may observe your simulated trades and share that information pursuant to Clause 16.5.
- 2.4 You should obtain independent financial, legal or tax advice regarding your specific circumstances as appropriate.

3. Representations and undertakings

- 3.1 You represent that:
 - 3.1.1 you meet the eligibility criteria in Clause 1 (*Eligible applicants*);
 - 3.1.2 you have the authority to enter into the Agreement and to perform your obligations thereunder;
 - 3.1.3 you are not under any legal or other impairment which makes, or could make, any provision in the Agreement void, voidable or unenforceable;
 - 3.1.4 you are not insolvent or under any form of external administration, nor have you agreed to make a settlement with, assignment to, or compromise with your creditors;
 - 3.1.5 you have all rights and consents necessary to provide any User Data to us;
 - 3.1.6 you sought independent advice in connection with your decision to enter into the Agreement or decided not to seek such independent advice, and
 - 3.1.7 you have carefully assessed the possible risks arising from your participation in the Program and accept those risks.
- 3.2 You are deemed to repeat the representations in Clauses 3.1.1 to 3.1.5 on each day of the Agreement.
- 3.3 You must notify us immediately if you cease to meet the eligibility criteria in Clause 1 (*Eligible applicants*) following the conclusion of the Agreement.

- 3.4 You are obliged to fulfil your tax obligations, whether direct or indirect, including income taxes, payroll taxes, VAT, GST and similar taxes, levies or fees for which you are liable in connection with, or arising from, your participation in the Program in accordance with applicable law. We have no responsibility for your personal or business tax liabilities. If you indicate that you are a VAT-registered person during the application process, we will consider you as such for the entire duration of the Agreement unless evidenced to us otherwise

4. Program and FTMO Account

- 4.1 If we approve your application, we will open an FTMO Account for you.
- 4.2 Access to the Program and the Services will be through the User Area, or by the provision of access to applications provided by us or third parties. The access is protected by login credentials, which you must not share with any third party. If you are a legal entity, you may not share access to the Program and the Services, including your FTMO Account, with your employees except members of top management or another body with the highest executive authority. You are responsible for all activities that are performed through the User Area or otherwise using your login credentials.
- 4.3 Access to the Program and the Services may be temporarily unavailable due to, among other things, maintenance and upgrades. You are obliged to regularly follow our updates available [here](#) regarding maintenances, holidays and other developments impacting trading hours and availability of the Program. We generally release updates weekly or as needed in case of urgent matters.
- 4.4 To participate in the Program and use the Services, you must possess appropriate technical equipment and software, including third-party software, at your own risk and expense. A limited license to certain software is provided by us or a member of the FTMO Group (see Clause 8 (*Use of the Website, Program and other Content*)). The Program and the Services are compatible and interoperable with technical and software equipment normally used with services of this type. The Website is accessible from the most commonly used web browsers. Internet access, purchase of the equipment, and purchase of the web browser and its updates are at your own risk and expense. We do not warrant or guarantee that the Program and the Services will be compatible with any specific equipment or software.
- 4.5 The operators of any third-party software, applications or programs which you use to participate in the Program and access the Services are persons or entities distinct from us and such third-parties' own terms and conditions and privacy policies will apply when you use their services and products. Before you enter into the Agreement, you should read such terms and conditions and privacy policies. By using a Trading Platform or other third-party software, you agree to those third-party terms and conditions. We will have no responsibility or liability to you in connection with your use of, or interaction with, any third-party software including a Trading Platform.
- 4.6 We reserve the right to modify, change, replace, add, or remove any elements and functions of the Program and the Services at any time without being obliged to pay you any compensation.

5. Rules of Simulated Trading

- 5.1 The simulated trades which you perform on the FTMO Account ("**Simulated Trading**") simulate trading on financial markets. Information and market data (price quotes) from real financial markets as provided by our liquidity providers is used in Simulated Trading only to reproduce market conditions. No actual trading is taking place and there is no execution of trades in financial markets.
- 5.2 You acknowledge that:
- 5.2.1 Simulated Trading is purely fictional, meaning that the trades are simulated and not in real financial instruments; and
 - 5.2.2 the amount shown as capital in your simulated account at any point (the "**Capital**") is simulated in nature, does not represent any deposit of funds and has no monetary value.
- 5.3 During Simulated Trading, you may perform simulated trades unless these constitute Forbidden Trading Practices. In addition, you must follow good market practice and market standard risk management rules for trading in financial markets set out in Clause 5.10 (the "**Risk Management Rules**"). These rules ensure that your simulated trades are replicable with the same or highly similar execution conditions in typical market behaviour and are not designed to circumvent, or 'game', our offering. Restrictions may also be imposed by third parties who provide the Trading Platform or the trading conditions of the Trading Platform that you select in the Order.
- 5.4 You agree that the Program and the Services are for your personal use only and that only you personally can participate in the Program and access the Services and perform simulated trades. This means that you will not, in particular:
- 5.4.1 allow access to your FTMO Account or data related thereto by any third party;
 - 5.4.2 engage or cooperate with any third party in order to have such third party perform simulated trades on your FTMO Account, and
 - 5.4.3 access the FTMO Account of any other person, make simulated trades on behalf of any other person or in coordination with such person or perform any account management or similar services, where you agree to make simulated trades, operate or manage the FTMO Accounts on behalf of any other person, whether performed as a professional or otherwise.
- 5.5 The amount of the initial Capital available for Simulated Trading in your FTMO Account (the "**Initial Capital**") and, where applicable, the currency, and other parameters that apply under these Terms, are set out on the Website, as updated from time to time. Subject to Clause 5.6, the amount of the Initial Capital will be the amount you selected for the Evaluation Process which you successfully passed and which made you eligible to apply for the FTMO Account under Clause 1.1 (the "**Passed Evaluation Process**").
- 5.6 You may request an increase of the Initial Capital in accordance with the scaling plan described [here](#) on the Website (the "**Scaling Plan**"). We are not obliged to approve any such request and may do so at our sole discretion. If we approve such a request, we may require you to

enter into a new agreement to replace the Agreement under which you made the request in order to reflect the increase in the Initial Capital. In addition, the maximum total amount of Initial Capital may be increased under our premium programme described on the Website (the "**Premium Programme**").

- 5.7 You must not, alone or in concert with others, including between connected accounts or accounts held with other members of the FTMO Group, perform the same Simulated Trading strategy, unless the total sum of the Initial Capital across all your FTMO Accounts is less than USD 400,000 per user or Simulated Trading strategy.
- 5.8 If you have successfully completed multiple Evaluation Processes, you may ask us to combine the Initial Capital of two or more of these completed Evaluation Processes on one FTMO Account (merging of accounts). The maximum total amount of Initial Capital, individually or in combination, may not exceed USD 400,000 per user or per each Simulated Trading strategy across FTMO Accounts. We will approve the request only if the relevant FTMO Accounts have identical parameters and have not been activated yet, meaning the Reference Period has not started.

Forbidden Trading Practices

- 5.9 You must not engage in any Simulated Trading which involves Forbidden Trading Practices. A list of Forbidden Trading Practices is available [here](#). You must familiarise yourself with the Forbidden Trading Practices. We reserve the right to determine, at our own discretion, whether certain simulated trades, practices, strategies, or situations qualify as or fall within a Forbidden Trading Practice. We may update the list of Forbidden Trading Practices from time to time. We may also impose restrictions on the use of the Trading Platform from time to time if we reasonably suspect that your simulated trading involves a Forbidden Trading Practice.

Risk Management Rules

- 5.10 A fundamental aspect of our mission is to educate traders and enhance their skills to cultivate responsible trading habits. We maintain a secure environment for traders to engage in Simulated Trading. We retain the discretion to implement any measures we consider appropriate to prevent activities we deem analogous to gambling, unsafe for the continuation of the business or to prevent any other conduct that we, at our sole discretion, regard as misaligned with our mission and values.

When participating in the Program you must abide by market standard risk management rules for trading on financial markets. These are defined by us at our discretion, acting reasonably, to ensure that activity is not designed to circumvent our rules and amounts to genuine Simulated Trading strategies. Genuine strategies are strategies using risk management rules a reasonable person would apply when trading on financial markets with their own money. Market standard risk management rules include, as an example, avoiding:

- 5.10.1 opening substantially larger position sizes compared to your other simulated trades, on any of your accounts;
- 5.10.2 opening substantially smaller or larger number of positions compared to your other simulated trades, regardless of which of your accounts are concerned, and

5.10.3 undertaking repeated simulated trading activity that results in higher Risk per Trade Idea, thereby exposing your simulated account to cumulative exposure in a specific symbol or correlated symbols.

Consequences of Forbidden Trading Practices and breach of Risk Management Rules

5.11 If, acting reasonably, we determine that you have engaged in Simulated Trading which involves Forbidden Trading Practices or breach of the Risk Management Rules in one or more of your FTMO Accounts, we may, at our sole discretion:

5.11.1 decrease the maximum leverage in one or more of your FTMO Accounts;

5.11.2 cancel your right to all or part of your Reward;

5.11.3 cancel, consolidate or reclassify one or more of your simulated trades or remove any transactions that violate the Rules of Simulated Trading from your trading history and/or not count their results in the profits and/or losses achieved in the Simulated Trading from your FTMO Account;

5.11.4 immediately terminate your participation in the Program and cancel all Services provided to you, including one or more of your FTMO Accounts, access to the User Area and the Trading Platform, and subsequently terminate any Agreements concluded with you with immediate effect pursuant to Clause 12.2.2;

5.11.5 inform FTMO Evaluation who may take applicable steps under the FTMO General Terms and Conditions in respect of any active Evaluation Process you may have, including cancellation of all of your active Evaluation Processes and termination of the respective agreements;

5.11.6 enforce the limitation on Risk per Trade Idea to the maximum limit we determine, acting reasonably, as a percentage of the Initial Capital, which must not be exceeded in terms of realised or unrealised loss (drawdown) on any single simulated trade or combination of simulated trades out of one trade idea on one or more of your FTMO Accounts;

5.11.7 enforce a limitation on the volume of any specific symbol or asset class when Simulated Trading;

5.11.8 impose restrictions on the use of the Trading Platform, and

5.11.9 introduce any other additional measures we deem necessary, advisable or adequate in order to ensure your Simulated Trading activity reflects long term sustainability and is not aimed at the mere exploitation of our model including temporary or permanent consistency measures.

5.12 We will endeavour to notify you of any action we take. However, we are not required to notify you before taking such action.

5.13 If some or all Forbidden Trading Practices are executed on one or more of your FTMO Accounts, or FTMO Accounts of various related customers, or by combining trading through FTMO Accounts and accounts under the Evaluation Process, then we are entitled to cancel all Services and terminate all Agreements relating to all FTMO Accounts you have, with

immediate effect, apply other measures in Clause 5.11 in respect of all such involved accounts with us.

- 5.14 We are not obliged to provide you with any compensation if we take any action against you in accordance with this Clause 5 (*Rules of Simulated Trading*). In addition, we may adopt measures to prevent you from participating in the Program in the future.

Compliance with mandatory Simulated Trading objectives

- 5.15 You must comply with the following objectives during the Simulated Trading in an FTMO Account (together, the "**Simulated Trading Objectives**"):

5.15.1 fulfil all of the objectives listed for the FTMO Account:

- (a) [here](#) in case the Passed Evaluation Process was FTMO Challenge: 1-Step; or
- (b) [here](#) in case the Passed Evaluation Process was FTMO Challenge: 2-Step;

5.15.2 not have any open positions in a simulated financial instrument outside the trading hours of the instrument, except for a maximum of a two-hour "roll-over break", and

5.15.3 not perform a simulated trade in a simulated financial instrument in a two-minute period before and after the issuance a significant macroeconomic announcement is published that may have a significant impact on the simulated financial instrument as further set out [here](#).

- 5.16 The conditions set out in Clauses 5.15.2 and 5.15.3 do not apply if you selected the swing type of the FTMO Account.

- 5.17 If you fail to comply with the Simulated Trading Objectives, the relevant FTMO Account and the corresponding Agreement are terminated automatically pursuant to Clause 12.1 without any right to a Reward (see also Clause 12.4).

6. Reward

- 6.1 In case you achieve a Profit in your Simulated Trading, you may receive a Reward in exchange for data regarding such Simulated Trading (see Clause 16 (*Your personal information and Simulated Trading information*)) and in particular Clause 16.5 for more information). Your right to receive a Reward in connection with your Simulated Trading on the FTMO Account and the amount of any Reward depends on the results of your Simulated Trading and the fulfilment of the Simulated Trading Objectives and is determined in accordance with this Clause 6 (*Reward*). Your right to all or some of a Reward is also subject to your compliance with Clause 5.9 (*Forbidden Trading Practices*). Further, you are not entitled to any Reward if the Agreement is terminated pursuant to paragraph (e) of Clause 12.2.2, breach of Clause 3 (*Representations and undertakings*) or Clause 14 (*Confidentiality*) or a material breach of any other term of these Terms.

The Reference Period and Reward Day

- 6.2 We will evaluate the results of your Simulated Trading for the reference period (the "**Reference Period**"). The Reference Period is a period of at least 14 days, commencing on the day of your

first simulated trade in your FTMO Account and concluding on the date selected by you, following close of all Simulated Trading positions and pending orders (the "**Reward Day**").

- 6.3 Within two business days after the Reward Day, we will evaluate the results of your Simulated Trading to determine whether the conditions for a Reward are fulfilled. If they are fulfilled, we will enable you the option to request the Reward be paid out of the FTMO Account (the "**Pay-out Request**").

Calculating the Reward

- 6.4 The Reward is an amount equal to a percentage of the Profit you made from the Simulated Trading in your FTMO Account over the Reference Period, depending on the version of Passed Evaluation Process, as set out [here](#), unless increased in accordance with the Scaling Plan or the Premium Programme. For the purposes of the Reward calculation the Profit does not include any Roll-over Reward (see Clause 6.11) which you accumulated during the previous Reference Periods. Such Roll-over Reward will be part of your Reward in full (i.e., 100%) if you chose to have it paid out at the end of the Reference Period.

Invoicing and payment of the Reward

- 6.5 We will notify you of any Reward via the User Area. Following this notification, you must inform us via the User Area of the portion of the Reward which you wish to be paid and how you wish to be paid or, alternatively, the portion of the Reward which you wish to roll-over to a new Reference Period (see Clause 6.11), in which case a minimum roll-over amount set out in the User Area applies. You must also provide any other information which we may reasonably require from you in connection with the payment of any Reward.
- 6.6 The Reward will be paid to you based on an invoice subject to applicable taxes. You hereby authorise us to issue electronic invoices for the payment of the Reward on your behalf every time you request the creation of an invoice in the User Area. For this purpose, you need to fill out the relevant form available in the User Area to provide all mandatory information necessary for the issuance of an invoice and request the creation of an invoice (the "**Form**"). The invoice will be issued automatically no later than seven (7) calendar days after we receive the form from you. This authorisation is valid until you notify us that you will issue the invoice yourself or until you deliver your own invoice before we issue the invoice on your behalf.
- 6.7 The following invoicing and payment terms apply:
- 6.7.1 The invoices are due in fourteen (14) calendar days from their delivery to us. The Reward is deemed paid when the corresponding amount is debited to the bank account listed in the invoice or when another method of paying out the Reward available on the Website based on your choice is completed. You bear all costs and fees associated with the transfer.
- 6.7.2 The invoice must state the amount of the Reward you wish to be paid, an account owned by you to which we should pay the Reward as well as other mandatory information advised at the time; otherwise, we will not pay the Reward until provided with a corrected invoice. For your protection we may require you to validate such information via two-factor verification before providing the Reward.

- 6.7.3 The invoice can be issued in EUR or in other currency or cryptocurrency available in the Form. If you select an available currency other than EUR, the amount to be paid will be converted using a market exchange rate we derive from current market rates and it will automatically display the amount in your chosen currency, so you know how much you will receive. If you issue the invoice in a currency other than the available currencies in the Form, we may reject the invoice or convert such currency to EUR at a market exchange rate we derive from current market rates.
- 6.7.4 The information provided by you in the invoice and the Form must be correct, up to date and in line with applicable law. In the event of any change in these data or requisites, you must notify us immediately. You are always responsible for the correctness of the invoice and its compliance with applicable law, irrespective of the method of its issuance.
- 6.7.5 If an invoice does not contain all necessary information or is not in line with applicable law, you will notify us within ten (10) calendar days from the date of receipt of the invoice, stating the reason and request a corrected invoice. After that period, we are not obligated to correct invoices. We will send a corrected invoice to you within ten (10) calendar days from the date of receipt of a relevant timely notification from you which will be due fourteen (14) calendar days from delivery.
- 6.8 The amount of the Reward determined as stated above is final and includes all taxes, whether direct or indirect, including VAT, GST, or similar taxes, levies and fees, which may apply to it under the relevant legal regulations. You are solely responsible and liable for the payment of any and all taxes, whether direct or indirect, including VAT (Value Added Tax), GST (Goods and Services Tax), or similar taxes, levies or fees that apply to you in relation to the Agreement under the applicable laws and acknowledge and agree that we are not liable for any such obligations.
- 6.9 A minimum amount of Reward you may request to be paid out applies and is set out in the User Area ("**Minimum Pay-out**"). We will not process any Pay-out Request for any amount lower than the Minimum Pay-out. Your right to any Reward of less than that amount will be forfeited, unless it is rolled-over to a new Reference Period.
- 6.10 You must submit a Pay-out Request for your Reward within 12 months from the date when we first enabled you the option to do so (see Clause 6.3). After this, your right to the Reward will terminate and any Reward remaining in your FTMO Rewards Account will expire.

Commencement of new Reference Period in FTMO Account

- 6.11 Following the end of the Reference Period in which you earned a Reward, you may start Simulated Trading in a new Reference Period. This means:
- 6.11.1 we will reinstate your access to your FTMO Account;
- 6.11.2 a new Reference Period as set out in Clause 6.2 will begin; and
- 6.11.3 all parameters of the FTMO Account will be reset to their initial values, including the value of the Capital (i.e., in particular all profits and losses from the prior Reference Period are disregarded), unless the Passed Evaluation Process was FTMO Challenge: 2-Step and you transfer part or all of the Reward from the prior Reference Period ("**Roll-**

over Reward") to be added to your Capital for the new Simulated Trading cycle; however, this does not change the Initial Capital used to calculate the completion of the Simulated Trading Objectives.

7. FTMO Points

- 7.1 When selecting the method for payment of the Reward, we may, at our sole discretion, allow you the option to purchase FTMO Points as a form to pay out the Reward or part of it. The value of one FTMO Point equals EUR 1.00.
- 7.2 FTMO Points may be used exclusively to purchase services and products from members of the FTMO Group in accordance with the FTMO General Terms and Conditions. FTMO Points cannot be exchanged for cash or other monetary value.
- 7.3 You can access the overview of the purchased FTMO Points in the User Area, where you can see the current number of FTMO Points available to you as well as their history.
- 7.4 FTMO Points have an expiration date, which will be shown to you at the moment of purchase and displayed in the User Area.
- 7.5 You are solely responsible and liable for the payment of any and all taxes, whether direct or indirect, including income taxes, payroll taxes, VAT, GST and similar taxes, levies or fees that may apply under the applicable laws upon the redemption of FTMO Points and acknowledge and agree that we are not liable for any such obligations.

8. Use of the Website, Program and other Content

- 8.1 All Content is subject to legal protection pursuant to copyright laws and other laws and regulations and is our or our licensor's property. We grant you a limited, non-exclusive, non-transferable, non-assignable, non-passable, and revocable permission to use the Content for the purpose of participating in the Program and using the Services for your personal use and in accordance with these Terms. The Content is not sold or otherwise transferred to you and remains our property or our licensor's property. Any misuse of our or our licensor's property will result in termination of the Agreement pursuant to Clause 12 (*Duration and termination of the Agreement*) and misuse of our licensor's property will also subject you to liability under applicable law outside the terms of the Agreement.
- 8.2 All trademarks, logos, trade names, and other designations displayed on, through or in connection with the Program or the Services are our property or our licensor's property, and we do not grant you any authorisation to use them.
- 8.3 Except for the rights expressly set out in these Terms, we do not grant you any other rights relating to the Program, the Services and the Content. You may only participate in the Program, use the Services and the Content as expressly permitted in these Terms.
- 8.4 When participating in the Program and accessing the Services and the Content you agree that you will not:
 - 8.4.1 use any tools that may adversely affect the operation of the Program, the Website, the Services or the Content, or that would be intended to take advantage of errors, bugs or other deficiencies of the Program, the Website, the Services, or the Content;

- 8.4.2 circumvent geographical restrictions of availability or any other technical restrictions;
 - 8.4.3 make copies or back-ups of the Program, the Website, the Services or the Content;
 - 8.4.4 reverse-engineer, decompile, disassemble or otherwise modify the Program, the Website, the Services or the Content;
 - 8.4.5 sell, rent, lend, license, distribute, reproduce, spread, stream, broadcast or use the Program, the Website, the Services or the Content otherwise than as expressly permitted in these Terms;
 - 8.4.6 use automated means to view, display or collect information available through the Program, the Website, the Services or the Content; or
 - 8.4.7 use any other tools or means the use of which could cause any damage to us, the Program, the Website, the Services or the Content.
- 8.5 You must inform us if you use the same payment channel or payment component details, such as debit or credit card, external wallet or crypto address, or the same device (such as computer, mobile phone or tablet) for accessing the Services with any other user of our Services.

9. Disclaimer and indemnification

- 9.1 The Program, the Website and the Content are provided “as is” and we hereby disclaim, to the fullest extent permitted by law, any statutory, contractual, express and implied warranties of any kind, including any warranty of quality, merchantability, fitness for a particular purpose or non-infringement of any rights. We do not provide any guarantee for the quality of the Services and we make no express or implied representations that the Program, including the Trading Platform and the Website, will meet your or any other person’s requirements, be compatible with any software, system or other services, accurate, complete, free of errors or fully accessible at all times.
- 9.2 To the fullest extent permitted by law, we are not responsible for:
- 9.2.1 any harm, including any direct, indirect or consequential damage, including lost income or profit, loss of data, personal or other non-monetary harm, or property damage caused as a result of participation in the Program or use of the Services or reliance on any instrument, functionality, information or any other content available in connection with the use of the Services or elsewhere on the Website;
 - 9.2.2 our failure to provide the Services if that failure occurs due to serious technical or operational reasons beyond our control, in the case of any crisis or imminent crisis, natural disaster, war, insurrection, pandemic, a threat to a large number of people or other force majeure events, or if we are prevented from providing the Services as a result of any obligations imposed by law or a decision of a court or tribunal or public authority with competent jurisdiction over us;
 - 9.2.3 any products, services, applications or other third-party content that you use in connection with the Program or the Services and we do not make any express or implied representations as to the compatibility of the Services with any such third-party content;

- 9.2.4 the Trading Platform and any information displayed on the Trading Platform, all of which is provided by a third party, or for any interruptions, delays or inaccuracies in the market or statistical data displayed through the Trading Platform or the instruments accessible within the Program or the Services or otherwise in connection with the Trading Platform;
- 9.2.5 trading or other investment activities performed by you outside of your relationship with us, for example by using data or other information from the User Area, Trading Platform, or otherwise related to the Program or the Services in real trading on financial markets.
- 9.3 In case our liability is inferred in connection with the operation of the Program or the Website or provision of the Services by a court or tribunal or any other public authority with competent jurisdiction over us, this liability will be limited to USD 2,500.
- 9.4 Nothing in these Terms is intended to exclude, restrict or modify the application of any implied condition or warranty, any provision, the exercise of any right or remedy, or the imposition of any liability under the Czech consumer law provisions or any other statute where to do so would contravene that statute; or cause any provision of these terms to be void
- 9.5 You shall indemnify, hold harmless, and, at our option, defend us from and against any and all losses, damages, liabilities and costs (including reasonable attorneys' fees) resulting from any third-party claim, suit, action or proceeding ("**Third-Party Claim**") that the Program or the Website, or any use thereof, infringes or misappropriates such third-party's intellectual property rights or other proprietary rights and any Third-Party Claims based on your (i) negligence or wilful misconduct; (ii) participation in the Program or use of the Services or the Website in a manner not authorised by these Terms; (iii) participation in the Program or use of the Services or the Website in combination with data, software, hardware, equipment, or technology not provided by us or authorised by us in writing; or (iv) modifications to the Program, the Services or the Website not made by us, provided that you may not settle any Third-Party Claim against us unless we consent to such settlement, and further provided that we will have the right, at our option, to defend ourselves against any such Third-Party Claim or to participate in the defence thereof by counsel of our own choice. To the fullest extent permitted by law, the indemnity provided in this Clause 9.5 shall survive the termination of the Agreement.

10. Breach of these Terms

- 10.1 We may restrict your access to the Program and Services, including to the User Area and FTMO Account, without any prior notice, if you breach any provision of these Terms. If you breach Clause 1 (*Eligible applicants*), 5 (*Rules of Simulated Trading*), Clause 8 (*Use of the Website, Program and other Content*) or act in a manner that may damage our reputation, including after termination of this Agreement, we will terminate one or more Agreements and you will lose access to the Program and Services and your FTMO Account will be revoked by us. In addition, we may adopt measures to prevent you from participating in the Program in the future
- 10.2 We are not obliged to provide you with any compensation in the cases set out in Clause 10.1.

11. Right to withdraw from the Agreement

- 11.1 If you are a Consumer, you have the right to withdraw from the Agreement relating to an individual FTMO Account without giving a reason during a 14-calendar day period following

the execution of such Agreement. You must send the withdrawal from the Agreement to us by email within the specified time limit. We will confirm receipt of the withdrawal without undue delay.

12. Duration and termination of the Agreement

12.1 The Agreement is concluded for an indefinite period. However, the Agreement terminates automatically and with immediate effect if the Simulated Trading Objectives are breached.

12.2 In addition, the Agreement may be terminated early in the following cases:

12.2.1 The Agreement terminates automatically and with immediate effect:

- (a) in case you reject a Modification as set out in Clause 15.1;
- (b) upon your death or, in case of legal entities, a filing for bankruptcy, winding-up, dissolution or liquidation.

12.2.2 We may terminate the Agreement with immediate effect:

- (a) if you do not meet the criteria set out in Clause 1 (*Eligible Applicants*);
- (b) if you breach the rules regarding personal participation in the Program and personal use of the Services set out in Clause 5.4;
- (c) if access to the User Area is terminated;
- (d) if you engage in Forbidden Trading Practices as set out in Clause 5.9 as determined by us before or during your participation in the Program, including in any Evaluation Process as notified to us by FTMO Evaluation;
- (e) if we determine, acting reasonably, that your participation in the Program under the Agreement would adversely affect our ability to comply with our legal obligations or orders or decisions of any court, tribunal or public authority;
- (f) as a result of your breach of these Terms as set out in Clause 10 (*Breach of these Terms*), or
- (g) as a result of a change to these Terms as set out in Clause 15 (*Changes to these Terms*).

12.2.3 In addition, we reserve the right to terminate the Agreement with you in respect of an FTMO Account in case of your prolonged inactivity. Prolonged inactivity is when:

- (a) you do not open at least one simulated trade on the Trading Platform for a period of thirty (30) consecutive calendar days, or
- (b) you maintain a loss in the FTMO Account in the amount between 8% and 10% (included) of the Initial Capital for a period longer than thirty (30) calendar days, whereas (i) performing simulated trades designed to circumvent this rule will be deemed to fulfil this condition and (ii) circumventing means performing simulated trades not consistent with your previous Simulated Trading pattern.

12.2.4 Either party may terminate the Agreement without cause by serving a written notice at least fourteen (14) calendar days in advance on the other party.

12.3 If the Agreement is terminated, your participation in the Program and FTMO Account under such Agreement and all Services provided under such Agreement are terminated.

12.4 Notwithstanding any other provision of these Terms, the following Clauses will survive the termination of the Agreement: 3.4; 6 (*Reward*) but only if the termination occurred pursuant to Clause 12.2.1 or 12.2.4; 7 (*FTMO Points*); 8 (*Use of the Website, Program and other Content*); 9 (*Disclaimer and indemnification*); 14 (*Confidentiality*), and 16 (*Your personal information and Simulated Trading information*).

12.5 We are not obliged to provide you with any compensation if we exercise our rights set out in Clause 12.2.

13. Technical issues, defective performance and complaints

13.1 If you encounter any technical issue or defect of the Program or the Services you agree to report them to us at your earliest convenience by using the methods listed [here](#) with the account identified and a description of the issue including the date and time. In case you proceed to perform new simulated trades after observing a technical issue without receiving a response from our team, you may be deemed fully responsible for the outcome of such simulated trades, even if these were affected by the identified technical issue. You acknowledge that we use tools utilising artificial intelligence for various tasks related to the Services, including by our technical support team

13.2 If the Program or the Services do not correspond to what was agreed, you can exercise your rights from defective performance. When exercising the rights from defective performance, you may only request that we remedy the defect. If the defect cannot be remedied, you can withdraw from each affected Agreement.

13.3 If you have any complaints or suggestions, we will be happy to discuss them directly with you. You can file a complaint by sending an email to us. We will try to resolve any complaint you lodge as soon as possible, however no later than within thirty (30) calendar days, and we will confirm its receipt and settlement to you in writing. If we do not deal with the complaint in time, in case you are Consumer who is an EU resident you have the right to withdraw from the relevant Agreement.

14. Confidentiality

14.1 You must keep confidential the terms of our Agreement with you (including these Terms), your communications with us, your Simulated Trading on the FTMO Account, all information that may constitute trade secrets, including know-how, and any other information made available to you by us which is designated as confidential or which is to be considered as confidential by reason of the nature of the information and the circumstances in which it was disclosed (the "**Confidential Information**").

14.2 Your obligation to protect the Confidential Information under this Clause 14 (*Confidentiality*) does not apply where:

14.2.1 the information is publicly available or known at the time of its use or disclosure, unless its public availability or knowledge was due to a breach of a legal or contractual obligation; or

14.2.2 the obligation to disclose the Confidential Information is required by law or any other legal regulation or based on a final decision of a court or tribunal or public authority.

15. Changes to these Terms

15.1 We may amend these Terms in the future (each such amendment a "**Modification**"). We will send you a notice of any Modification at least seven (7) calendar days before the change in the Terms is effective, via the User Area or by email. Your continued participation in the Program will constitute acceptance of the Modification. If you do not agree with the Modification, you are entitled to reject it by email no later than on the last business day before such changes take effect. In such a case all Agreements will be automatically terminated. We are not obliged to pay any compensation to you in case of any Modification.

15.2 If the Modification offers you a new service or other additional functionalities or this change is solely to your advantage, we can inform you about this change less than seven (7) calendar days before the effective date of such change, but no later than the day before its effectiveness.

15.3 We may amend these Terms to, among other things:

15.3.1 introduce new services or products or amend existing services or products;

15.3.2 reflect legal or regulatory requirements applicable to us, the Program or the Services;

15.3.3 make these Terms easier to understand and more helpful;

15.3.4 adjust the way the Program is provided, particularly due to technological developments or changes in background processes; or

15.3.5 reflect changes in the cost of offering the Program.

16. Your personal information and Simulated Trading information

16.1 When participating in the Program we will process your personal data in accordance with the [Privacy Policy](#) which may be updated from time to time.

16.2 If you are a legal entity we may collect personal data with respect to your employees, officers or representatives from you. In such case you represent that you have authority to provide such information to us and have provided them with our Privacy Policy.

16.3 You authorise us to collect your personal information from you in connection with your participation in the Program and the provision of Services to you under these Terms. We will handle personal information we collect from you in accordance with our Privacy Policy as updated from time and available on the Website.

16.4 You authorise us to use any information we collect from you or from others, or such other relevant documents:

- 16.4.1 in connection with your participation in the Program or the provision of the Services to you in accordance with these Terms;
- 16.4.2 to allow us to communicate with third parties in connection with the matters contemplated by these Terms, such as in connection with the FTMO Account; and
- 16.4.3 to ensure compliance with legal and regulatory requirements under applicable law.
- 16.5 You consent to us sharing information about your Simulated Trading in your FTMO Account with other members of the FTMO Group, and to us and other members of the FTMO Group using this information including, without limitation, in connection with our or their trading in financial products or to improve ours or their services, at our or their sole discretion, or processing and analysing this information, including by automated means. The information about simulated trades that you perform on the Trading Platform, which we share, use, process or analyse pursuant to the preceding sentence, is always anonymised. You agree that these activities may be performed automatically without any further consent or consultation on your part. You agree that you have no right or entitlement to any benefit in connection with the use of such data by us or another member of the FTMO Group, and that we are not obliged to provide you with any information relating to our specific use of such information. You also acknowledge that the amount of any Reward or its payment does not, in any case, depend on whether or the manner in which we or another member of the FTMO Group may use such information. Your consent survives the termination of the Agreement.
- 16.6 The termination of the Agreement does not affect the processing and use of any personal information or Simulated Trading information obtained prior to termination.
- 17. Out-of-court consumer dispute resolution**
- 17.1 This Clause 17.1 applies only to a Consumer who is an EU resident. The Czech Trade Inspection Authority (in Czech, Česká obchodní inspekce), with its registered office at Štěpánská 567/15, 120 00 Prague 2, Czech Republic, Identification No.: 000 20 869, website: <https://www.coi.cz/en/information-about-adr/>, is responsible for out-of-court settlement of consumer disputes. You can also use the platform at the following website to resolve disputes online: <https://www.ec.europa.eu/consumers/odr>. Such disputes may be initiated provided that you and us did not manage to resolve the dispute directly. The proceedings may be commenced only within one year after you contacted us with respect to the disputed right for the first time.
- 18. Governing law and jurisdiction**
- 18.1 The Agreement, including these Terms and the Program, and any non-contractual obligations arising under the Agreement are governed by the laws of the Czech Republic.
- 18.2 Without prejudice to Clause 17 (*Out-of-court consumer dispute resolution*), the courts in the Czech Republic have local jurisdiction to settle any dispute arising under or in connection with the Agreement (including a dispute relating to the existence, validity or termination of the Agreement).

19. Communication and notices

- 19.1 We will generally communicate with you, and give you notices in connection with the Program, electronically via the User Area or to the email address which you have registered with us. You may not change the email address after registration. You consent to us providing any notices or documents which we are required to provide to you under applicable law in this manner. Such communication is considered written communication and delivered when we have sent it to your registered email address or when it has been added to the User Area. You are responsible for ensuring that your email address is accessible to you for the purpose of receiving communications from us.
- 19.2 Please use the methods listed [here](#) for all communication regarding this Agreement or the Services. In case of any technical issues or defects of the Program or the Services you may use the forms available [here](#). We will consider a notice or communication to be received when it is actually delivered to our designated email address or through the other specified communication forms.

20. General

- 20.1 We have not adopted any consumer code of conduct.
- 20.2 The Agreement is concluded in the English language. By entering into the Agreement and accepting the Services, you confirm that you understand the English language and agree to communicate with us in English language for all purposes arising under the Agreement including with respect to submitting and resolving any issues you raise.
- 20.3 We archive the Agreement in electronic form. A copy of the Agreement, including these Terms, is available in the User Area.
- 20.4 The Agreement, together with any other documents incorporated herein by reference, constitutes the sole and entire agreement between you and us with respect to the subject matter of this Agreement and supersedes all prior and contemporaneous understandings, agreements, and representations and warranties, both written and oral, whether express or implied, with respect to such subject matter. In the event of a conflict between the wording of the main text of these Terms and any document referred to in these Terms, the main text of these Terms shall prevail.
- 20.5 You agree that we may assign or transfer the Agreement, any part thereof or any individual obligations or any individual rights arising therefrom to a third party. We may also agree with a third party on any assumption of our debts and obligations under the Agreement at any time and at our sole discretion. You may not transfer the Agreement, any part thereof or any individual obligations or any individual rights arising therefrom to a third party without our prior written consent.
- 20.6 If at any time any provision of the Agreement is or becomes void, illegal, invalid, ineffective or unenforceable in any respect, it will not affect the validity, effectiveness and enforceability of the remaining provisions of the Agreement. Any such void, illegal, invalid, ineffective or unenforceable provision of the Agreement will be replaced by incorporation of a provision which best achieves the commercial effect that we intended thereby, and is valid, effective and enforceable.

- 20.7 In no event shall we be liable to you, or be deemed to have breached this Agreement, for any failure or delay in performing our obligations under this Agreement, if and to the extent such failure or delay is caused by any circumstances beyond our reasonable control, including but not limited to acts of God, flood, fire, earthquake, explosion, war, terrorism, invasion, riot or other civil unrest, strikes, labour stoppages or slowdowns or other industrial disturbances, or passage of a law or any action taken by a governmental or public authority, including imposing an embargo.
- 20.8 No past or future practice established between the parties and no custom maintained in general or in the industry relating to the subject-matter of the performance, which is not expressly referred to in the Agreement, will be applied and no rights and obligations will be derived from them for the parties. In addition, they will not be taken into account in the interpretation of manifestations of the will of the parties.
- 20.9 You will bear the risk of a change of circumstances.
- 20.10 Each of us acknowledges and agrees that a breach or threatened breach by such party of any of its obligations under Clause 8.4 would cause the other Party irreparable harm for which monetary damages would not be an adequate remedy and agrees that, in the event of such breach or threatened breach, the other Party will be entitled to an injunction, specific performance, and any other relief that may be available from any court. Such remedies are not exclusive and are in addition to all other remedies that may be available at law, in equity, or otherwise.
- 20.11 No failure to exercise, or any delay in exercising, on our part, any right under the Agreement will operate as a waiver, nor will any single or partial exercise of any right prevent any further or other exercise or the exercise of any other right.
- 20.12 Both you and we undertake to act in accordance with the principles of fair dealing in the performance of the Agreement and in mutual negotiations and, in particular, not to damage each other's reputation and legitimate interests. You and we will work in good faith to resolve any possible disagreements or disputes in accordance with the Agreement and applicable law.
- 20.13 Prior to the conclusion of the Agreement and acceptance of the Terms, both parties to the Agreement have carefully assessed the possible risks arising from them and accept those risks.

21. Definitions and interpretation

- 21.1 In these Terms, the following terms have the meaning set out below:

"Agreement" means the contract between you and us which is concluded when we accept your application for an FTMO Account as set out in the introductory provisions to these Terms, also referred to as the 'Account Agreement' in marketing materials and the Website.

"Capital" means the amount shown as capital in your FTMO Account at any point, which is simulated in nature and has no monetary value.

"Consumer" means any natural person who is acting for purposes which are outside their trade, business, craft, or profession.

"Content" means the Website, the Program and all the Services, including the FTMO Account, their appearance and all applications, data, information, multimedia elements such as texts, drawings, graphics, design, icons, images, audio and video samples and other content that may form the Services, and includes any such content located on social networks of us or any other member of the FTMO Group.

"Evaluation Process" means the separate simulated account FTMO Challenge service offered as either FTMO Challenge: 1-Step or FTMO Challenge: 2-Step by FTMO Evaluation pursuant to the FTMO General Terms and Conditions.

"Forbidden Trading Practices" means trading practices, strategies or situations specified on the Website, as updated from time to time which are strictly forbidden while using participating in the Program and which are more detailed in Clause 5.9.

"FTMO Account" means the account for Simulated Trading provided to you under these Terms.

"FTMO Evaluation" means FTMO Evaluation Global s.r.o., a company established and existing under the laws of the Czech Republic, with its registered office at Purkyňova 2121/3, Nové Město, 110 00 Prague 1, Czech Republic, Identification No.: 092 13 651.

"FTMO Group" means FTMO Evaluation, FTMO Trading and their respective affiliates.

"FTMO Trading" means FTMO Trading Global s.r.o., a company established and existing under the laws of the Czech Republic, with its registered office at Purkyňova 2121/3, Nové Město, 110 00 Prague 1, Czech Republic, Identification No.: 094 18 415.

"Initial Capital" means the amount of initial Capital determined in accordance with Clause 5.5.

"Minimum Pay-out" means a minimum amount of Reward you may request to be paid out which is set out in the User Area as further described in Clause 6.9. We will not process any Pay-out Request for any lower amount.

"Modification" means our right to modify, change, replace, add, or remove any elements and functions of the Program at any time by an amendment to these Terms as set out in Clause 15 (*Changes to these Terms*).

"Passed Evaluation Process" means the Evaluation Process which you successfully passed and which made you eligible to apply for the FTMO Account under Clause 1.1.

"Pay-out Request" means your request the Reward be paid out of the FTMO Account.

"Premium Programme" means the programme described [here](#).

"Profit" means, in a Reference Period, the positive difference between the value of the remaining balance of Capital in your FTMO Account (in which no positions are opened) on the Reward Day and the amount of the Initial Capital.

"Program" means the FTMO Account program governed by these Terms whereby you gain access to the FTMO Account and may receive a reward for the data you generate in your FTMO Account. The basis on which you may be entitled to a Reward is set out in Clause 6 (*Reward*).

"Reference Period" means a period during for we will evaluate your Simulated Trading results as set out in Clause 6.2.

"Restricted Jurisdictions" means the countries where we do not provide the Services and from which we do not accept citizens or residents as customers as determined by us at our discretion. The current list is available [here](#) and may be updated from time to time.

"Reward" means a monetary reward you may receive for the data you generate in your FTMO Rewards Account.

"Reward Day" means the last day of the Reference Period.

"Risk Management Rules" means good market standard rules and practices for trading on financial markets set out in Clause 5.10.

"Risk per Trade Idea" means the total exposure in a specific symbol (or correlated symbols) on your account during a given moment or within a specific time period, measured as a percentage of your initial Simulated Capital, whereas the associated risk is determined by the maximum drawdown of realised or unrealised loss of the positions linked to the same trade idea.

"Roll-over Reward" means part or all of the Reward you chose to transfer from the prior Reference Period to be added to your Capital for the new Simulated Trading cycle as set out in Clause 6.11.3.

"Scaling Plan" means the program described [here](#).

"Services" means our services which we enable you to access through the Website and which are further described in Clauses 4 to 6.

"Simulated Trading" means activity that simulates trading on financial markets you perform on the Website, in which information and market data (price quotes) from real financial markets as provided by our liquidity providers is used only to reproduce market conditions, no actual trading is taking place and there is no execution of trades in financial markets. Also referred to as 'demo trading' in marketing materials and the Website.

"Simulated Trading Objectives" means the mandatory objectives of the Simulated Trading set out in Clause 5.15.

"Terms" means these FTMO Account Terms and Conditions.

"Trading Platform" means an electronic interface provided by a third party in which you perform the Simulated Trading.

"User Area" means the user interface located on the Website. Also referred to as the 'Client Area' in marketing materials and the Website.

"User Data" means all data which you provide to us or which you generate while participating in the Program and using the Services.

"we" means FTMO Trading.

"Website" means the website ftmo.com.

21.2 If we use a currency in these Terms, equivalent in a different currency applies as well.